



March 16, 2026

Stacie Litovchenko
Analyst II
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Department of Managed Health Care
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Via DMHC Web Portal

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Re: Proposed Contract Termination with Empire Physicians Medical Group, Inc.
Block Transfer Filing No. 2026-PROV-94
Filed on March 5, 2026

Dear Ms. Litovchenko.

This is in response to your comment letter regarding the information in the above-referenced Block Transfer Filing (Filing) submitted by Cigna HealthCare of California, Inc. (Plan.)

Please review the Plan's responses below.

1. Please confirm Empire Physicians Medical Group and Optum Care Network-Desert Cities refers to the same medical group.

The Plan confirms that Empire Physicians Medical Group and Optum Care Network-Desert Cities refer to the same medical group. Empire Physicians Medical Group is the old name for Optum Care Network-Desert Cities.

2. Regarding the Enrollee Transfer Notice submitted for this Filing, the following information was found missing or incorrect. Please resubmit the Enrollee Transfer Notice for the Department's review to include the following:

- a. "The following statement in at least 12-point font:

If you have been receiving care from a health care provider, you may have a right to keep your provider for a designated time period. Please contact your health plan's customer service department, and if you have further questions, you are encouraged to contact the Department of Managed Health Care, which protects consumers, by telephone at its toll-free number, 1-888-466-2219, or at a TDD number for the hearing and speech impaired at 1-877-688-9891, or online at www.dmhca.ca.gov."

The Plan is resubmitting the Enrollee Transfer Notice that includes the aforementioned statement in 12-point font.

- b. Statement informing enrollees that they may contact the Plan for language assistance. This statement must include contact information.

The following statement is included in the Language Assistance document

that will accompany the notice letter to enrollees. Please refer to the copy of the Language Assistance document included with this response.

No Cost Language Services for customers who live in California and customers who live outside of California who are covered under a policy issued in California. You can get an interpreter. You can get documents read to you and some sent to you in your language in a timely manner. Appropriate auxiliary aids and services to provide information in accessible formats are also available free of charge. For help, call us at the number listed on your ID card or call 1-800-244-6224 for medical/dental or 1-866-421-8629 for mental health/substance use. For more help, call either the HMO Help Center at 1-888-466-2219 or for Non-HMO plans (e.g. PPO) call the CA Dept. of Insurance at 1-800-927-4357.

3. Please provide the following for each proposed Receiving Provider Group:

a. Contract termination date,

The Plan confirms that none of the Receiving Provider Groups are under termination with the Plan.

b. In the case of an evergreen contract with any proposed Receiving Provider Group, please provide the Department with:

i. Contract renewal date(s), or

The Plan confirms there is no specified renewal date(s).

ii. If there is no specified renewal date(s), please state whether a notice of termination has been sent or received, and

The Plan confirms it has neither issued nor received any contract termination notices to/from the receiving groups that would result in termination within the next six months.

iii. Confirm whether each evergreen contract will automatically renew.

The Plan confirms that each evergreen contract will automatically renew unless either the Plan or the Receiving Provider Group initiates termination of the agreement.

4. To assess continuity of care for enrollees affected by the Block Transfer, please identify or confirm:

a. The number of affected enrollees who have been authorized or approved to receive a procedure or service from a provider within the Terminating Provider Group within 180 days of the Termination Date.

The Plan confirms that the Terminating Provider Group is delegated for Utilization Management for most professional services. Accordingly, the Terminating Provider Group is responsible for issuing authorizations. As a result, the Plan does not have direct visibility into the number of affected enrollees who have been authorized or approved to receive procedures or services from providers within the Terminating Provider Group within 180

days of the termination date. However, the Plan has requested this information from the Terminating Provider Group and is currently awaiting their response.

- b. The number of affected enrollees who have been authorized or approved to receive a procedure or service within 180 days of the Termination Date from a hospital utilized by the Terminating Provider Group, but not utilized by the enrollee's Receiving Provider Group.

The Plan confirms that, based on the currently available hospital authorization report, there are no affected enrollees who have been authorized or approved to receive a procedure or service within 180 days of the termination date at a hospital utilized by the Terminating Provider Group but not utilized by the Receiving Provider Group.

- c. Whether a continuity of care and/or completion of covered services agreement exists between the Plan and the Terminating Provider Group. If no agreement exists, please provide an update on the progress, if any, of reaching an agreement.

The Plan confirms that a continuity of care and/or completion of covered services agreement exists between the Plan and the Terminating Provider Group.

- 5. Please indicate whether the plan intends to send an Enrollee Notice to all Plan enrollees assigned to **Empire Physicians Medical Groups, Inc.**

The Plan intends to send an Enrollee Notice to all Plan enrollees assigned to the Terminating Provider Group.

Please contact me directly at 860.902.6866 or via email at Leaanna.tonkin@cignahealthcare.com should you have any additional questions or concerns.

Sincerely,

Lea Anna Tonkin

Lea Anna Tonkin

Cc: Attachments

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